



Certificate
of
Occupancy

Under the Land Use Act, No. 6 of 1978
and the Land Use Regulations, 1980

This is to certify that

LAGOS STATE CERTIFICATE OF
OCCUPANCY

No. 87/87/2022^{AB}

(Description and Location of the Land)

ALONG OSHOGBO STREET
AGUDA, SURULERE AREA
OF LAGOS STATE
AREA: 277.877 SQ MTS

is hereby issued by the Governor of the Lagos
State of Nigeria to:

NAME: DARALL HOMES LIMITED

ADDRESS: OSHOGBO STREET, AGUDA, SURULERE
LAGOS STATE

OCCUPATION:

and has been registered as NUMBER: 87

AT PAGE 87 IN VOLUME 2022^{AB}

of the Lagos State of Nigeria Land Registry Office, Ikeja

DATED THIS 10TH DAY OF FEBRUARY 2022

This Certificate of Occupancy was examined and (where necessary) made to correspond with the register on the following dates:

Date	Office Stamp	Date	Office Stamp

NOTICE
This Certificate of Occupancy may be sent at any time to the Lagos State Lands Registry to be officially examined and (where necessary) made to correspond with the register.

LAND USE ACT 1978
(No. 6 of 1978)

LAND USE REGULATIONS 1981
FIRST SCHEDULE

FORM C

Regulation 2

LAGOS STATE GOVERNMENT
CERTIFICATE OF OCCUPANCY



Certificate of Occupancy No. 87/87/2022MB

THIS IS TO CERTIFY THAT in exercise of the powers conferred on the Governor of Lagos State of Nigeria by Sections 5, 9 and 10 of the Land Use Act No. 6 of 1978 (hereinafter referred to as "the Act") and of all other powers enabling him in that behalf.....
DARALL HOMES LIMITED

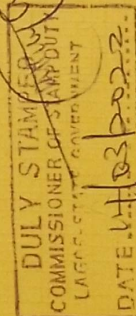
of OSHOGBO STREET, AGUDA, SURELERE, LAGOS STATE.

(hereinafter called "the ~~holder~~ holders" which term shall include any person defined as such in section 50(1) of the Act) ~~is~~ are entitled to the *Statutory / Customary Right of Occupancy No. 87/87/2022MB dated 10th day of February 2022

WHEREAS:

*In exercise of the powers conferred on the Governor of Lagos State of Nigeria under section 5(1) (a) of the Act, the Governor granted to the *holder/holders a Statutory Right of Occupancy under the said Statutory Right of Occupancy No. in and over the said land described in the Schedule HERETO and more particularly delineated in the Plan No. annexed hereto TO HOLD the same to ~~his~~ use for COMMERCIAL purpose only for a term of NINETY-NINE (99) years commencing from the 1ST day of JANUARY 201 according to the true intent and meaning of the Act any modification, amendment or re-enactment thereof and any regulation made thereunder and subject to the provisions thereof and to the following special terms and conditions:

*In exercise of the powers conferred upon the Local Government Council under section 6(1) (a) and (b) of the Act, the Local Government Council granted to the *holder/holders a Customary Right of Occupancy under the said Customary Right of Occupancy No. in and over the land described in the Schedule hereto and more particularly delineated in the Plan No. annexed hereto TO HOLD the same to *his/their use for purpose only for a term of years commencing from the day of 201 according to the true intent and meaning of the Act, any modification, amendment or re-enactment thereof and any regulation made thereunder and subject to the provisions thereof and to the following special terms and conditions:



THE VITAL INSTRUMENT IS IN THE
OPINION OF THE COMMISSIONER OF LANDS
DUTIES CHARGEABLE WITH SUCH
OF THE REGION HAS BEEN
COMMISSIONER OF LANDS
LAGOS STATE GOVERNMENT

*The Governor having been satisfied that under a deed of *assignment / conveyance/ lease/sublease dated theday of.....201.....and registered as No.....at page.....in Volume.....in the Lands Registry atthe *assignment (freehold/lease/sublease was previously vested in the *holder/holders and that under*section 34(1),(2) and (3), sections 34 (5) (a), (6) (a) and 9 of the Act, the *holders*is* are deemed to be the *holder/holders of a Statutory Right of Occupancy now granted under the said Statutory Right of Occupancy No.....in and over the land described in the Schedule hereto and more particularly delineated in the Plan No.....annexed hereto TO HOLD the same to *his/their use forpurpose only for a term of.....(.....) years commencing from the day of201..... according to the true intent and meaning of the Acts, any modification, amendment or re-enactment thereof and any regulation made thereunder and subject to the provision thereof and to the following special terms and conditions:

*The Governor having been satisfied that by

..... a land was previously vested in the *holder/holders and that under *section 34(1), (2) and (3), sections 34 (5) (a), (6) (a) and 9 of the Act, the *holder/holders *is/are deemed to be the *holder/holders of a Statutory Right of Occupancy now granted under the said Statutory Right of Occupancy No.....in and over the land described in the Schedule hereto and more particularly delineated in the Plan No.....annexed hereto TO HOLD the same to *his/their use forpurpose only for a term of (.....) years commencing from the day of201..... according to the true intent and meaning of the Act, any modification, amendment or re-enactment thereof and any regulation made thereunder and subject to the provisions thereof and to the following special terms and conditions.

- 1.—*(1) To pay in advance without demand to the Governor or other person appointed by the Governor:
 - (a) the yearly rent of ₦ 4,500.00 (FOUR THOUSAND, FIVE HUNDRED NAIRA) on the first day JANUARY each year.
 - (b) the revised rent as hereinafter provided; and
 - (c)
- (2) To pay and discharge all rates, taxes, assessment, outgoings and other impositions whatsoever which shall at any time be charged, assessed, or imposed on the said land or any part thereof or any building thereon, or upon the *occupier/occupiers thereof.
- (3) To pay forthwith without demand to the Governor or other person appointed by the Governor on the issue of this certificate (if not sooner paid) all survey fees and other charges due in respect of the preparation and issue and registration of this certificate.
- (4) To maintain in substantial repair all land marks by which the boundaries of the said land are defined.

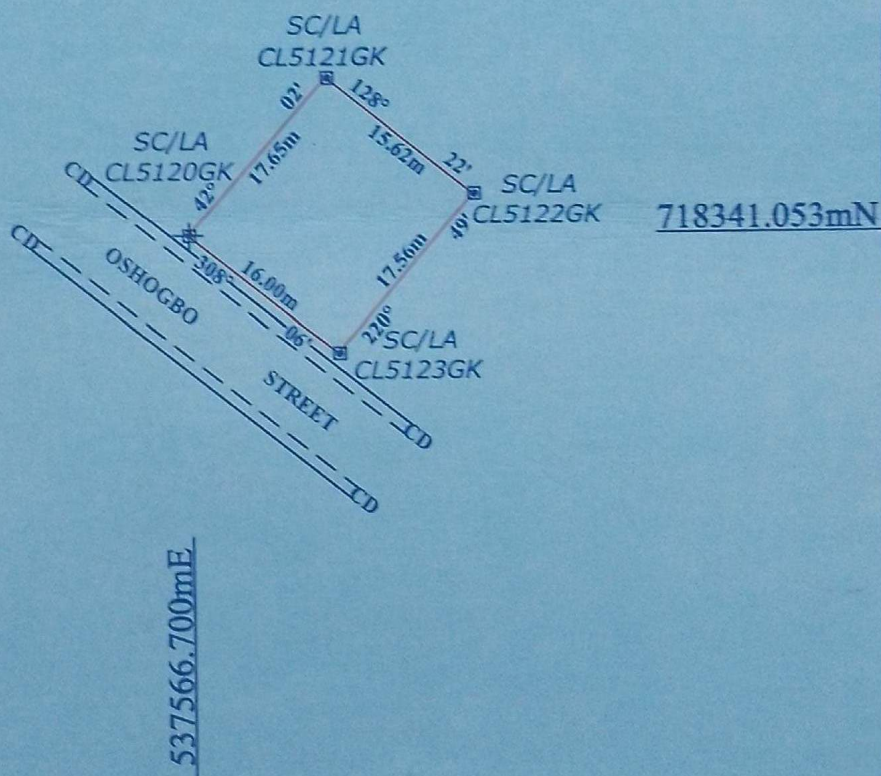
*(5)—(a) Within two years from the date of the commencement of this Right of Occupancy to erect and complete on the said land buildings or other works specified in detailed plans approved or to be approved by the Governor or other officer appointed by the Governor such buildings or other works to be of the value of not less than ₦ 50,000,000.00
(.....) FIFTY MILLION NAIRA or such a value as will bring the total value of all structures on the land to ₦ and to be erected and completed in accordance with such plans and to the satisfaction of the Governor or any officer appointed by the Governor.



PLAN SHEWING PROPERTY
SAID TO BELONG TO
DARALL HOMES LIMITED
ALONG OSHOGBO STREET, AGUDA
SURULERE LOCAL GOVT. AREA
LAGOS STATE
SCALE:- 1: 500



ORIGIN:- U.T.M (ZONE 31)
AREA:- 277.877 SQMTS.



HEPHZIBAH CONSULTANT
REGISTERED SURVEYOR
F.L.C.H SHAGARI ESTATE
12 DC STREET
ABESAN IPAJA

CERTIFIED TRUE COPY
OF ORIGINAL PLAN
MADE BY ME

CHIEF O.A OYENUGA. Msc. (SURV)
REGISTERED SURVEYOR
DATE: 20/03/2020

LAN NO. HCS/1332/Y021/K/2020/LA

(b) The Governor may extend the time prescribed by subclause (5)(a) hereof after the ~~holder~~ holders ~~has~~ have given a satisfactory explanation about ~~the~~ their it's failure to develop the said land within the prescribed period of two years.

(6) To observe and comply with all terms, covenants and conditions implied by virtue of the State Lands Law Cap. 130 Laws of Lagos State of Nigerian and any amendment, regulation for the time being in force under the said Law.

(7) Not to assign until after the expiration of ten years from the date of grant of this Certificate of Occupancy and in the event of any assignment being sought within the period specified herein, the first offer of such assignment shall be made to the Governor or any person appointed by the Governor.

(8) Where the ~~holder~~ holders ~~has~~ have applied for consent to assign, mortgage, transfer of possession, sublease or otherwise of any property erected on the said land the Governor may insist that the open market value shall be reflected on the instrument of assignment or transfer, as the case may be, as a condition precedent to the grant of consent to the transaction.

(9) To maintain in good and substantial repair to the satisfaction of the Governor or any officer appointed by the Governor all buildings on the said land whether now erected or to be erected in pursuance of subclause (5) hereof.

(10) To clear and keep clear the said land of stagnant water, long grass, rank weeds and bush, an accumulation and deposits of rubbish and other unwholesome matter, and to keep the same in all respects in a clean and sanitary condition, and for such purposes to do and execute all such acts and works as the Governor or any officer authorised in that behalf may reasonably require.

(11) To conform to all rules laid down from time to time in regard to the location of buildings and town planning regulations.

(12) Not to erect or build or permit to be erected or built on the said land any buildings other than those covenanted to be erected by virtue of this Certificate of Occupancy and not to make or permit to be made any addition or alteration to the said building to be erected in accordance with plans and specifications approved by the Governor or other officer appointed in that behalf.

(13).--- (a) Not to alienate the Right of Occupancy hereby granted or any part thereof by assignment, mortgage, transfer of possession, sublease or otherwise howsoever without the prior written consent of the Governor or in other cases without the approval of the appropriate Local Government Council;

(b) Where a Right of Occupancy has been revoked by the Governor or a public officer duly authorised by him in that behalf for overriding public interest or a breach of any term contained in any Certificate of Occupancy or a refusal or neglect to accept and pay for a Certificate of Occupancy which was issued in evidence of a Right of Occupancy but has been cancelled by the Governor under sub-section 3 of section 9 of the Act, compensation shall be payable on such revocation of a Right of Occupancy in appropriate and special cases in accordance with the provisions of the Act.

(14) To use the said land only for the purposes of COMMERCE.

*2. PROVIDED ALWAYS AND IT IS HEREBY AGREED AS FOLLOWS:

* (1) For the purpose of the rent to be paid under this Certificate of Occupancy the term of the Right of Occupancy shall be divided into periods of FIVE (5) Years and the Governor may, as near as conveniently may be to the expiration of each period of FIVE (5) years, revise the rent and fix the sum which shall be payable for the next period of FIVE (5) years, or, if less than FIVE (5) years of the term shall remain, for the remainder of the term. If the Governor shall so revise the Rent, he shall cause a notice in writing to be sent to the ~~holder~~ holders informing ~~the~~ of the revision of the rent, and the ~~holder~~ holders shall thereupon, within one month of the date of the receipt of such notice or within seven days of the commencement of the period for which the rent has been revised, whichever shall last happen, without further demand pay to the Governor, or other person appointed by the Governor, the difference between the unrevised rent and the revised rent for the period (if any) between the date of revision and the thirty-first day of December in the year then current and thereafter the ~~holder~~ holders shall pay in

it

other person appointed by the Governor in lieu of the said yearly rent of
N 4,500.00 (FOUR THOUSAND, FIVE HUNDRED Naira)

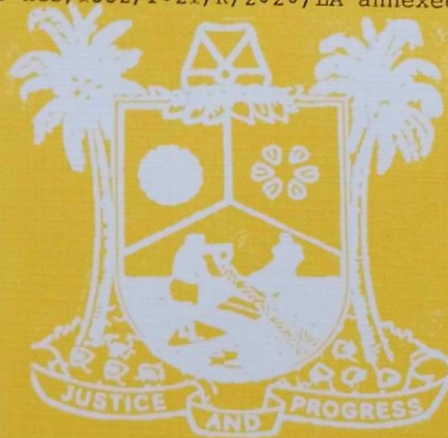
such revised rent as may for the time being be payable in respect of the said land.

*(2) If the yearly rent payable in respect of the said land or any thereof shall be in arrears for the space of three months, whether the same shall or shall not have been legally demanded, or if the ~~XXXXX~~ holders become bankrupt or make a composition with creditors or enter into liquidation whether compulsory or voluntary, or if there shall be any breach or non-observations of any of*occupier's/occupies covenants or agreements herein contained, then and in any of the said cases it shall be lawful for the Governor at any time thereafter to enter into and upon the said land, or any part thereof in the name of the whole to re-enter and the same to have again re-possess and enjoy as in his former estate.

SCHEDULE

All that piece of land situated ~~xx~~ along Oshogbo Street, Aguda, Surulere

Local Government Area of Lagos State containing an area of approximately 277.877 Square Metres more particularly delineated and shown verged "Red" on Survey Plan No. HCS/1332/Y021/K/2020/LA annexed hereto.



Given under my hand, this 10th day of February 2022



Shungu
Governor of Lagos State of Nigeria

*Delete whichever is inapplicable.

FOR REGISTRATION SEE LETTER REF NO LGH OF LULCH/503
OF APRIL FROM L.H.A.C

THIS INSTRUMENT WAS DELIVERED TO ME FOR
REGISTRATION BY DARAU HOMES LIMITED
OF OSHOGBO STREET AGUNJA, SURULERE LAGOS STATE.
AT 10:00 O'CLOCK IN THE FORE NOON
THIS 6TH DAY OF APRIL, 2022
M. Balogun
DEPUTY/ASST REGISTRAR



REGISTRATION FEE ~~₦~~1000

THIS INSTRUMENT IS REGISTERED AS NO. 87
PAGE 87 IN VOLUME 2022AB
LAND REGISTRY IN THE OFFICE AT LAGOS.
M. Balogun
REGISTRAR